

109	Cunningham vs. FCA US, LLC. 24-01431302	Motion for Bifurcation Defendant FCA US, LLC (“Defendant”) moves for an order bifurcating trial with regard to plaintiffs Dana Lynn Cunningham and Cara Leigh Cunningham’s (“Plaintiffs”) claim for punitive damages, precluding Plaintiffs from introducing evidence of or otherwise referring to Defendant’s financial condition unless and until Plaintiffs prove a prima facie case of liability for punitive damages, pursuant to Civil Code section 3295(d). Section 3295(d) provides, in relevant part: “The court shall, on application of any defendant, preclude the admission of evidence of that defendant’s profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294.” “[I]n practice bifurcation under this section means that all evidence relating to the amount of punitive damages is to be offered in the second phase, while the determination whether the plaintiff is entitled to punitive damages (i.e., whether the defendant is guilty of malice, fraud or oppression) is decided in the first phase along with compensatory damages.” (Holdgrafer v. Unocal Corp. (2008) 160 Cal.App.4th 907, 919.) Pursuant to section 3295(d), Defendant’s Motion to Bifurcate is GRANTED. It is ORDERED that Plaintiffs shall be precluded from admitting evidence of Defendant’s financial condition in the first phase of trial and shall not introduce such evidence unless and until Plaintiffs have established a prima facie case of their entitlement to punitive damages. Moving party to give notice
110	Konkimalla vs. Bose 21-01221950	Motion to Strike or Tax Costs